



Data Processing Agreement (DPA)

White-label template · GDPR Art. 28 · v1.0 · 2026

IMPORTANT: This template is provided for informational purposes. Have it reviewed by a qualified legal professional before use. Replace all {{PLACEHOLDER}} fields with your actual information.

Parties

This Data Processing Agreement ("DPA") is entered into as of **{{EFFECTIVE_DATE}}** between:

	Controller	Processor
Legal name	{{CONTROLLER_NAME}} ("Controller")	{{PROCESSOR_NAME}} ("Processor")
Registered address	{{CONTROLLER_ADDRESS}}	{{PROCESSOR_ADDRESS}}
Contact / DPO	{{CONTROLLER_DPO_EMAIL}}	{{PROCESSOR_DPO_EMAIL}}
Reg. number	{{CONTROLLER_REG_NUMBER}}	{{PROCESSOR_REG_NUMBER}}

1. Definitions

Terms used in this DPA have the same meaning as in the GDPR (Regulation (EU) 2016/679). 'Personal Data', 'Processing', 'Data Subject', 'Supervisory Authority', and 'Sub-processor' are as defined therein.

2. Subject Matter & Purpose of Processing

The Processor shall process Personal Data on behalf of the Controller solely for the purpose of: **{{DESCRIBE SERVICE, e.g. 'providing e-commerce hosting and order management services'}}**. Processing shall not occur for any other purpose without the Controller's prior written consent.

3. Nature of Processing

The processing operations include: **{{DESCRIBE, e.g. storage, retrieval, transmission, deletion}}**. The types of Personal Data processed are: **{{DESCRIBE, e.g. customer names, email addresses, order histories, IP addresses}}**. The categories of data subjects are: **{{DESCRIBE, e.g. customers of the Controller's online store}}**.

4. Processor Obligations

The Processor shall: (a) process Personal Data only on documented instructions from the Controller; (b) ensure that authorised personnel are bound by confidentiality obligations; (c) implement appropriate

technical and organisational security measures (Art. 32 GDPR); (d) assist the Controller in responding to Data Subject requests; (e) assist the Controller in ensuring compliance with Arts. 32-36 GDPR; (f) delete or return all Personal Data upon termination of services; (g) provide all information necessary to demonstrate compliance with Art. 28 GDPR.

5. Sub-processing

The Processor shall not engage sub-processors without the Controller's prior written authorisation. A current list of approved sub-processors is available at: **{{PROCESSOR_SUBPROCESSOR_URL}}**. The Processor shall impose the same data protection obligations on sub-processors and shall remain fully liable to the Controller for their performance.

6. International Transfers

The Processor shall not transfer Personal Data outside the EEA without the Controller's prior written consent and without ensuring appropriate safeguards under GDPR Chapter V (e.g. Standard Contractual Clauses, adequacy decision, or BCRs).

7. Security

The Processor shall implement measures including, as appropriate: pseudonymisation and encryption; ability to ensure ongoing confidentiality, integrity, availability, and resilience of systems; ability to restore availability of data after incidents; regular testing and evaluation of security measures. The Processor shall notify the Controller without undue delay (and within 48 hours where feasible) upon becoming aware of any Personal Data breach.

8. Audit Rights

The Controller may conduct audits, or commission third-party audits, of the Processor's data processing activities. The Processor shall provide all reasonable assistance. The Processor may satisfy audit obligations by providing relevant certifications (e.g. ISO 27001, SOC 2 Type II) unless the Controller reasonably requires a direct audit.

9. Duration & Termination

This DPA is effective from the Effective Date and continues for as long as the Processor processes Personal Data on behalf of the Controller. Upon termination, the Processor shall, at the Controller's choice, delete or return all Personal Data within 30 days and certify in writing that it has done so.

10. Governing Law

This DPA is governed by the laws of **{{GOVERNING_LAW_JURISDICTION}}**. Disputes shall be subject to the exclusive jurisdiction of the courts of **{{JURISDICTION}}**.

Signatures

CONTROLLER	PROCESSOR
Signed: _____	Signed: _____
Name: _____	Name: _____
Title: _____	Title: _____
Date: _____	Date: _____
Company: _____	Company: _____